MONEY DILEMMAS WITH Vanessa Stoykov

WHAT WOULD YOU DO?

THE NEXT STEP

DIVORCE & MONEY

Protecting your financial future

A practical guide to understanding your financial position, asking better questions and planning your next steps.

WITH VANESSA STOYKOV

Featuring insights from family law barrister Tahlia Ferrari of counsel

Companion to Money Dilemmas - What Would You Do?

Australian legal and financial context

Welcome

Divorce can turn a familiar financial life upside down. A home, a business, debts, retirement savings and the everyday cost of living suddenly need to be looked at in a completely different way. And the decisions often arrive when you are least emotionally equipped to make them.

I know from my own experience that the temptation can be to say, “I just want this over.” But the financial choices you make during a separation can shape the next ten or twenty years. In fact the outcome achieved at a final property settlement, often has a lasting impact on the rest of your life.

That is why I created this guide. It is not here to tell you what settlement to accept or provide specific financial or legal advice. It is here to help you understand what you own and owe, organise the questions you need answered, and walk into professional conversations better prepared.

In my Money Dilemmas conversation with barrister Tahlia Ferrari, we explored the story of Mark, whose business was estimated at $2 million on paper but who had nowhere near that amount in cash. His situation shows how complicated a separation becomes when wealth, work, family and emotion collide.

You do not need to own a business to use this guide. Whether you have a family home, retirement savings, shared debts or a complicated mix of assets, the exercises are designed to help you see the whole picture.

Good luck on having the right conversations

Vanessa Stoykov



How to use this guide

1. Read the expert insights and circle anything you need to investigate.

2. Complete the worksheets using estimates where necessary; mark anything you cannot confirm so that you know what you need to find out later.

3. Take your questions and action plan to your own qualified financial professional and lawyer.

4. Return to your answers before agreeing to a major financial decision.

A note on safety: if there is family violence, coercive control, threats or financial abuse, do not assume that negotiating directly or sharing financial documents with the other person is safe. Seek confidential specialist support and legal advice first.



Featuring insights from

Tahlia Ferrari

Family law barrister

SECTION 01

The dilemma: a business worth $2 million, but not $2 million in cash

Mark is 52. He started a packaging business before he got married and then spent more than twenty years building it. It now employs 14 people and has been informally estimated at around $2 million. His wife worked part-time while their children were young and took on more of the parenting. As they separate, Mark fears that recognising the business in a property settlement could force him to borrow heavily to pay out his ex-wife or lose the business.

Tahlia's central message was that the conversation cannot start and finish with "the business is worth $2 million, so someone gets $1 million". The business is one part of a wider financial picture. Its debts and actual value need examination, as do other assets, contributions and future circumstances.

Five insights from Tahlia's interview

1. Look at the full asset and liability picture, not one headline number.

2. Initial financial contributions at the commencement of cohabitation may be important. Also, financial contributions and non-financial contributions such as parenting and managing a household, during a de facto relationship or marriage, both matter.

3. An independent single expert valuation can provide a more accurate starting point than one party's estimate.

4. There may be different ways to structure a financial outcome: retaining a business may be balanced against other assets, depending on the financial circumstances of the parties.

5. Mediation may offer more control over the final outcome than a matter determined on a final basis by the Court, but independent legal advice remains important.

> These are general themes from the interview, not predictions of what a court would decide in any particular case.

Your first reflection

Which part of your finances worries you most right now?

What do you know for certain, and what are you assuming?

SECTION 02

Build your financial snapshot

When building your financial snapshot below, if possible try to capture this at two separate points in time. Firstly, as at the time of co-habitation, what assets and liabilities did you have. Secondly, as at the time of separation, what assets and liabilities do you have. This will greatly assist, when obtaining legal advice about likely outcomes.

You cannot make an informed plan around assets or liabilities you have not identified. Use this as an inventory, not a proposed settlement. Record values and balances as at a stated date; a figure from six months ago may no longer be accurate.

Assets and liabilities at commencement of cohabitation

Date: _____

Item	Asset	Liability	Whose name?	Evidence / action needed
Home or other real property				
Business interests				
Bank accounts / cash / cryptocurrency				
Shares / investments				
Vehicles / valuables				
Mortgage / loans				
Credit cards / personal loans or other debts				
Business liabilities / guarantees				
Other assets or liabilities				
TOTAL				
Retirement savings / super				

SECTION 02

Your financial snapshot: separation or now

Date: _____

Item	Asset	Liability	Whose name?	Evidence / action needed
Home or other real property				
Business interests				
Bank accounts / cash / cryptocurrency				
Shares / investments				
Vehicles / valuables				
Mortgage / loans				
Credit cards / personal loans or other debts				
Business liabilities / guarantees				
Other assets or liabilities				
TOTAL				
Your retirement savings / super				
Their retirement savings / super				
TOTAL superannuation				

Do not assume an asset or liability is excluded simply because it is held in one person's name or a business entity or that every listed item will be treated in a particular way. Ask your lawyer how it should be considered.

SECTION 02

Your financial records checklist

Documents to locate

- ☐ Last three years of bank, mortgage, credit card and loan statements
- ☐ Property ownership and mortgage details including the most recent amount owing on the mortgage
- ☐ Last three years of tax returns starting with the most recent
- ☐ Last three pay slips and relevant income records
- ☐ Business accounts, ownership records, loan documents and guarantees, if applicable
- ☐ Insurance, estate planning and beneficiary nomination documents
- ☐ Superannuation statements and investment account records

Three gaps in my financial picture:

SECTION 03

Understand the difference between value and cash

One of the most useful lessons from Mark's story is that the value of an asset is not the same as cash available to pay a settlement. A business may have customers, equipment, stock and goodwill, but also debts, tax obligations, working capital needs and dependence on its owner.

Likewise, a home may have substantial equity but no accessible cash until it is refinanced or sold. Retirement savings may be valuable but subject to preservation and legal rules.

A simple hypothetical example - not a settlement formula

Imagine one partner has an interest and runs a business which is independently valued by a suitably qualified single expert at $800,000. The couple also has $600,000 in home equity and $300,000 in retirement savings. It does not follow that the business owner must immediately pay $400,000 in cash to their former partner to retain the business. The legal and financial options depend on the full circumstances, including liabilities, contributions, future needs, liquidity and professional advice.

Questions to explore

Which assets could generate income after separation?

Which assets are difficult or expensive to turn into cash?

Which debts or guarantees might remain with me?

What would happen to my monthly cash flow under different arrangements?

SECTION 04

Your life after separation: the monthly reality

A settlement that looks reasonable on paper can still leave someone struggling to meet ordinary expenses. Consider your future income and costs before focusing only on a lump sum or a property.

Monthly item	Current estimate	After separation estimate
Take-home income	$_____	$_____
Housing / mortgage / rent	$_____	$_____
Utilities / internet / phone	$_____	$_____
Food / transport	$_____	$_____
Children / caring costs	$_____	$_____
Insurance / healthcare	$_____	$_____
Loan repayments	$_____	$_____
Legal / professional costs	$_____	$_____
Savings / emergency buffer	$_____	$_____
Other spending	$_____	$_____
TOTAL	$_____	$_____

Questions worth asking

- ☐ Will my income change after separation?
- ☐ Can I afford to maintain the home, even if I receive it?
- ☐ Am I relying on uncertain business income or future capital gains?
- ☐ Do I need to review my insurance, beneficiaries, will or powers of attorney with professionals?
- ☐ What cash reserve would make the next six to twelve months safer?

My most urgent cash-flow concern:

SECTION 05

The Financial Flashpoints exercise

A financial flashpoint is a moment when strong emotion and a major money decision arrive together. Divorce is one of the clearest examples. You may feel frightened, furious, exhausted or desperate to finish the process. Those feelings are real, but they should not be the only thing driving a long-term decision.

PAUSE: What am I feeling?

Name the emotion and the decision it is pushing you towards.

WAIT: What is actually urgent?

What needs attention now? Often in the heat of the moment during separation, one party may feel forced to agree to a parenting arrangement or financial settlement under pressure which is adverse to their best interests. Please seek independent legal and financial advice. What could safely wait a week while I get advice? (Never ignore a legal deadline.)

LOOK AHEAD: The five- and ten-year lens

How might this decision affect my housing, income, retirement savings and family life in five or ten years?

VALUES: What matters most?

What am I trying to protect - security, independence, fairness, stability for children, peace of mind?

EXPERT VIEW: Who can challenge my assumptions?

Which qualified professional do I need to speak to before deciding?

Before agreeing to anything important, ask yourself: “Am I choosing this because it serves my future, or because I need the discomfort to end today?”

SECTION 06

Ten questions to take to your family lawyer

Use these questions as a starting point. Your lawyer can tell you which issues matter in your circumstances and what information they need.

1. What are the likely steps in my property settlement, and are there any deadlines?
2. What financial information must each person disclose?
3. How will our financial and non-financial contributions be considered?
4. What factors about our future circumstances may be relevant?
5. Which assets need independent valuation, and how to jointly appoint a single expert valuer?
6. How will our superannuation be considered and what options may exist?
7. If one of us owns a business, what risks, liabilities and cash-flow issues need examining?
8. Could mediation or another dispute-resolution process assist?
9. What are the likely legal and expert costs at each stage, and how can I manage them?
10. How would a proposed agreement become legally binding, and what should I check before signing?

Questions to ask a financial adviser or accountant

- ☐ What might my income, expenses and cash reserves look like after separation?
- ☐ What are the tax, borrowing and liquidity consequences of the options being discussed?
- ☐ What is the likely capital gains tax liability for any asset that will be sold?
- ☐ What would different outcomes mean for my retirement savings and future financial independence?
- ☐ If a business is involved, what records and independent expertise will be needed?

My top three questions for my first appointment:

SECTION 07

When a business is involved

Mark's case raises issues that deserve a separate checklist. Business ownership can affect not just the couple, but employees, customers, lenders and sometimes adult children involved in the business.

Business preparation checklist

- Identify the legal owner and ownership structure of the business.
- Collect recent financial statements, the last three years of tax returns and details of loans or guarantees.
- Record director/shareholder loans and other related-party balances for professional review.
- Ask your lawyer whether an independent business valuation is appropriate.
- Understand how much working capital the business needs to operate.
- Explore the potential tax and borrowing implications of any proposed arrangement with advisers.
- Consider business continuity, employees and family succession intentions where relevant.

In the interview, Tahlia described a common approach in which lawyers propose independent single expert valuers and both sides work towards agreeing on an expert. It commonly occurs that one side proposes three valuers of which the other side selects one. She also emphasised that the accountant may play an important role in providing the underlying information directly to the jointly appointed independent single expert valuer.

Costs vary substantially. Tahlia shared examples from her own practice, but those examples are not quotes or current market price guides. Ask for written scopes, estimates and likely additional costs.

If I have a business, what would I most like to preserve?

What financial information would an independent valuer need?

SECTION 08

Mediation, negotiation and the cost of conflict

In the interview, Tahlia discussed how mediation can help parties explore practical arrangements, including when separating parties do not want to be in the same room. She also described the emotional strain and expense that can come with prolonged disputes.

86% [1] of all family law matters filed in the Federal Circuit and Family Court of Australia, contain allegations of family violence. Allegations of family violence are not always a barrier to resolving a family law matter via mediation. Often mediation in family law proceeds by way of shuttle. This means that often the separating parties do not see or speak to each other at the mediation. The mediator will often speak with each party separately joined by their respective legal representative. Thereafter, the respective legal practitioners and or counsel negotiate directly with the other sides legal representative/s, with the assistance of the mediator.

The overwhelming majority of family law matters resolve by way of mediation.

Ask a qualified lawyer or specialist service about safe options, including separate-room or remote arrangements if appropriate.

Prepare for a constructive professional conversation

- Know the three outcomes that matter most to you.
- Separate non-negotiable safety or legal issues from preferences.
- Bring documents and questions, not just a figure you hope to receive.
- Ask what happens if a proposed arrangement cannot be funded.
- Request a clear explanation of costs and next steps in writing.
- Do not sign an agreement you do not understand or have not had appropriately reviewed.

SECTION 08

Your decision filter

What would a workable outcome need to achieve for my day-to-day life?

Which trade-offs am I willing to explore with professional advice?

What would I regret overlooking five years from now?

SECTION 09

Your 30-day action plan

This is a preparation plan, not a legal timetable. If you have a court date, urgent financial issue or safety concern, get appropriate help immediately.

Days 1-7: Get organised

- Make a list of assets, debts, income and recurring expenses.
- Gather records you are legally entitled to access and keep them secure.
- Identify immediate housing, cash-flow and safety needs.
- Book an initial family law appointment or locate an appropriate support service.

Days 8-14: Get informed

- Ask about disclosure, deadlines and the process likely to apply.
- List items requiring independent valuation or specialist advice.
- Review your post-separation monthly budget.
- Complete the Financial Flashpoints exercise.

Days 15-21: Explore options

- With your professionals, identify possible scenarios and their financial consequences.
- Check liquidity, debt, tax and retirement implications.
- Ask what a proposed agreement would mean for your life in five and ten years.

Days 22-30: Make a plan

- Write down your remaining questions.
- Identify the next professional conversation and the documents it requires.
- Review your support network and wellbeing needs.
- Decide on the next informed step - not necessarily a final settlement.

My three priorities for the next 30 days:

SECTION 10

Useful resources and next steps

These are starting points for Australian readers. Check the current information and the rules that apply in your state or territory. The links are provided for education, not as endorsements or substitutes for individual legal or financial advice.

Family law and separation

Federal Circuit and Family Court of Australia - Court information and family law resources
https://www.fcfcoa.gov.au/

Family Relationships Online - Information about separation and family support
https://www.familyrelationships.gov.au/

Family Violence Law Help - Information about family violence and legal assistance
https://familyviolencelaw.gov.au/

Money and professional help

ASIC Moneysmart - Money management and financial education
https://moneysmart.gov.au/

National Debt Helpline - Free financial counselling information and support
https://ndh.org.au/

Vanessa Stoykov - Find a financial adviser
https://vanessastoykov.com.au/financial-advice/

Vanessa Stoykov - Additional resources
https://vanessastoykov.com.au/resources/

Support if you are unsafe or overwhelmed

1800RESPECT - National domestic, family and sexual violence counselling and support Telephone: 1800 737 732
https://www.1800respect.org.au/

Lifeline Australia - Crisis support Telephone: 13 11 14
https://www.lifeline.org.au/

If you are in immediate danger in Australia, call 000.

A final word from Vanessa

When you are in the middle of a separation, it can feel as though everything needs to be decided at once. Usually, what you need first is clarity: what you have, what you owe, what matters most, and which experts can help you make a decision you can live with.

You do not need to have all the answers today. But you can begin by asking better questions. In fact, preparing your financial snapshot and questions in advance of meeting with a lawyer and or financial advisor will help you get the most out of your first consultation. That is the purpose of Money Dilemmas, and it is the purpose of this guide.

Take your time where you safely can. Protect your future self. And remember that a difficult chapter does not have to determine the rest of your financial story.

All the best,



Important information

This guide provides general financial education and information only. It does not constitute personal financial, legal, tax or other professional advice. It does not take account of your objectives, financial situation or needs. Family law outcomes depend on the facts and applicable law. Seek independent advice from appropriately qualified professionals before acting or entering an agreement.

Keep the conversation going.

Watch or listen to Money Dilemmas - What Would You Do? for expert conversations about the money decisions that shape our lives. Share your own money dilemma through Vanessa's website:

WATCH MONEY DILEMMAS

vanessastoykov.com.au

HAVE A MONEY DILEMMA OF YOUR OWN?

Scan the QR code and tell us about it.

SCAN TO SHARE YOUR STORY

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